CHAPTER 10 · DEEP DIVE · A HOUSE DIVIDED

# Convict Leasing

How a loophole in the amendment that ended slavery was used to force thousands of Black Americans back into unpaid, brutal labor. 1870s–1920s.

**Name:** _____ **Period:** _____ **Date:** _____

*How a loophole in the amendment that ended slavery was used to force thousands of Black Americans back into unpaid, brutal labor. 1870s–1920s.*

If the Constitution abolished slavery 'except as a punishment for crime,' what happens when a state decides to call freedom a crime?

## Eleven Words

THE LOOPHOLE, REMEMBERED

Look again at the Thirteenth Amendment: slavery is abolished "except as a punishment for crime whereof the party shall have been duly convicted." Those eleven words were a door left open — and the Redeemer governments walked right through it.

If a person could be convicted of a crime, the state could legally force them to labor without pay. So the system found ways to convict Black Southerners — in enormous numbers.

## Arrest, Convict, Lease

HOW IT WORKED

Southern states passed broad, vague laws — vagrancy, loitering, "insulting gestures" — that could be used to arrest almost any Black person at will. Those convicted were then leased out by the state to plantations, mines, railroads, and factories, which paid the state for their labor.

The companies had no reason to keep the workers alive — if one died, the state simply supplied another. Conditions were often deadlier than slavery had been.

*Redemption, 1869–77 — map, © ShadowDog Digital Studios (SDS Digital Collection).*

## Bound Again

THE CONVICT-LEASE SOUTH

*Chained work gangs of mostly Black prisoners labored in mines, forests, and fields across the South — a brutal system that enriched states and companies on unpaid, coerced labor.*

*Convict laborers on a Southern farm — photograph, early 20th century, public domain (Library of Congress).*

## Slavery's Afterlife

MAKING CONNECTIONS

Convict leasing connects the threads of this whole unit. It grew directly from the Thirteenth Amendment's loophole; it was enforced by the Redeemer governments that ended Reconstruction; and its victims' voices survive in the work songs and field recordings of Southern prison farms — the subject of our "Songs of the Enslaved" lesson, whose 1939 recordings come from exactly this system.

It reminds us that the end of slavery in 1865 was not the end of the struggle over freedom — a struggle whose echoes reach into our own time, in debates about criminal justice and equality today.

## Connect the Threads

YOUR TURN

*You'll trace how a single clause links the 13th Amendment, Redemption, and even the music of the enslaved — practicing the skill of making connections across history.*